



File No.: EXP202206302

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated May 29, 2023, and based on the following:

FACTS

FIRST: On May 29, 2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202206302. The resolution was notified to the appellant on June 19, 2023, as evidenced in the file.

SECOND: On July 14, 2023, the appellant filed a recourse for reconsideration against the resolution issued in file EXP202206302, expressing disagreement with the contested resolution. It is noted that the recourse for reconsideration does not have the required signature of the appellant as stipulated in Article 115.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

THIRD: The requirement for remedying the lack of a signature, by which the appellant should submit the signed recourse for reconsideration within a maximum period of ten working days, was notified to the appellant through the publication of a notification announcement in the Official State Gazette dated October 13, 2023, after two attempts at postal notification were made and could not be carried out, as stipulated in Article 44 of the LPACAP, as evidenced in the file. It was also warned that if this defect was not remedied within the specified period and in accordance with the provisions of Article 68.1 of the LPACAP, it would be considered that the appellant had withdrawn their request.

FOURTH: The appellant has not submitted the required remedy to this Agency within the granted period.

To the above facts, the following apply,

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Requirements of the resolution in case of withdrawal

According to the provisions of Article 66.1.e) of the LPACAP, the requests made must contain the signature of the applicant or proof of the authenticity of their expressed will by any means.

For its part, Article 68.1 of the LPACAP, which regulates the "Remedy and improvement of the request," stipulates the following:

"1. If the initiation request does not meet the requirements specified in Article 66, and, where applicable, those specified in Article 67 or other requirements mandated by the applicable specific legislation, the interested party will be required to remedy the deficiency or attach the required documents within a period of ten days, indicating that if they fail to do so, they will be considered to have withdrawn their request, following a resolution that must be issued in the terms provided in Article 21."

In accordance with the provisions of Article 21.1 of the LPACAP, in the case of withdrawal of the request, the resolution will consist of the declaration of the circumstance that occurs, indicating the facts produced and the applicable norms.

"1. The Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation.

In cases of prescription, waiver of the right, expiration of the procedure, or withdrawal of the request, as well as the subsequent disappearance of the object of the procedure, the resolution will consist of

the declaration of the circumstance that occurs in each case, indicating the facts produced and the applicable norms. (...)"

III

Termination of the procedure

Article 84 of the LPACAP includes, as a mode of termination of the procedure, withdrawal, in accordance with the provisions of Articles 93 and 94 of the same law.

"The procedure will be concluded by resolution, withdrawal, waiver of the right on which the request is based, when such waiver is not prohibited by the legal system, and the declaration of expiration."

For these purposes, Article 94 of the LPACAP provides the following:

"1. Any interested party may withdraw their request or, when not prohibited by the legal system, waive their rights.

2. If the initiation document has been submitted by two or more interested parties, the withdrawal or waiver will only affect those who have submitted it.

3. Both the withdrawal and the waiver may be made by any means that allows for their documentation, provided that they include the corresponding signatures in accordance with the applicable regulations.

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4. The Administration shall accept the withdrawal or renunciation outright and shall declare the procedure concluded unless, having appeared in the same, third parties with an interest request its continuation within ten days from the date they were notified of the withdrawal or renunciation.

5. If the issue raised by the initiation of the procedure involves general interest or it would be advisable to process it for its definition and clarification, the Administration may limit the effects of the withdrawal or renunciation to the interested party and shall continue the procedure."

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO CONSIDER A.A.A. WITHDRAWN regarding the optional appeal for reinstatement filed against the resolution issued in file EXP202206302.

SECOND: TO DECLARE THE PROCEDURE regarding the optional appeal for reinstatement concluded.

THIRD: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

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